

SUPREME COURT OF THE STATE OF NEW YORK
BRONX COUNTY

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GLADYS CAMPUSANO,

Plaintiff,

-against-

THE CITY OF NEW YORK, NYPD OFFICER
LAMIK FITZGERALD (Shield # 25117), NYPD
OFFICER ANDREW SIMPSON (Shield #7218),
and JANE and JOHN DOE #'s 1-8 (Names and
Numbers are unknown at present) and other
unidentified member of the New York City Police
Department,

Defendants.

SUMMONS

Basis of Venue:
Place of Incident

Plaintiff Designates
Bronx County as
the place of trial

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To the above-named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
April 12, 2021

Respectfully submitted,

/s/ Sydney Ohagan
Sydney Ohagan, Esq.
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New York, New York 10005
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TO: CITY OF NEW YORK: CORPORATION COUNSEL, 100 Church Street, New York, NY 10007

NYPD OFFICER LAMIK FITZGERALD (SHIELD # 25117) and NYPD OFFICER ANDREW
SIMPSON (SHIELD # 7218), 40th Precinct, Bronx, New York

SUPREME COURT OF THE STATE OF NEW YORK
BRONX COUNTY

-----X
GLADYS CAMPUSANO,

Plaintiff,

-against-

**VERIFIED
COMPLAINT**

THE CITY OF NEW YORK, NYPD OFFICER
LAMIK FITZGERALD (Shield # 25117), NYPD
OFFICER ANDREW SIMPSON (Shield #7218),
and JANE and JOHN DOE #'s 1-8 (Names and
Numbers are unknown at present) and other
unidentified member of the New York City Police
Department,

Defendants.

-----X
Plaintiff **Gladys Campusano**, by her attorney, SYDNEY O'HAGAN, ESQ., as and for the Complaint
herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Section 1983, the rights secured by the First, Fourth, Fifth and Fourteenth Amendments to the United States Constitution and the laws of the State of New York. Plaintiff was unlawfully arrested by the defendants. Plaintiff was deprived of her federal constitutional and state constitutional and common law rights when the individually named police officer defendants unlawfully confined plaintiff, caused the unjustifiable arrest of plaintiff. In addition, plaintiff was subjected to conversion of chattels. Plaintiffs seek compensatory and punitive damages, declaratory relief, an award of costs and attorney's fees and such other relief as the Court deems just and proper.

PARTIES

2. Gladys Campusano is a citizen of the United States and a resident of New York.
3. Defendant City of New York is a municipal corporation organized under the laws of the State of New York, which violated plaintiff's rights as described therein.
4. NYPD OFFICERS LAMIK FITZGERALD, assigned Shield # 25117, and ANDREW SIMPSON, assigned Shield # 7218, were and are at all times relevant herein officers, employees, and agents of the New York City Police Department.

5. POLICE OFFICERS LAMIK FITZGERALD and ANDREW SIMPSON are being sued in their individual capacity and official capacity.
6. Police Officer John Doe Number 1 is and was at all times relevant herein an officer, employee, and agent of the New York City Police Department.
7. Police Officer John Doe #1 is being sued in his individual capacity and official capacity.
8. New York Police Officers John and Jane Doe #'s 2-8 are and were at all times relevant herein an officer, employee, and agent of the New York City Police Department.
9. Police Officers John and Jane Doe #2-8 are being sued in his/her individual capacity and official capacity.
10. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents, and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.
11. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department which acts as agents in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.
12. Plaintiff in furtherance of her State causes of action filed a timely Notice of Claim upon the City of New York in compliance with Municipal Law Section 50.
13. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and the City of New York has failed to pay or adjust the claim.
14. The City of New York held a 50(h) hearing examination of the Plaintiff on April 14, 2020.

STATEMENT OF FACTS

15. On December 1, 2019, at approximately 10:30 p.m., at 325 E. 149th Street, Bronx, New York, several police officers from the 40th precinct, including upon information and belief, NYPD Officer Lamik Fitzgerald and NYPD Officer Andrew Simpson, P.O. John and Jane Does #'s 1-8, and other as yet unknown police officers, at times acting in concert and at times acting independently, committed the following illegal acts against Plaintiff Campusano.
16. On December 1, 2019, shortly before 10:30 p.m. Plaintiff Campusano received permission from her stepfather to use his car to pick up food from a restaurant located on or near 325 E. 149th Street, Bronx, New York. After legally parking her car and picking up food from the restaurant, she returned to the car and realized she had locked the keys in the car. She called her boyfriend, Patrick Tillay, and asked him to come help her retrieve her car keys from the car. Mr. Tillay and a friend arrived and helped lower the window to the car using a hanger. Defendant officers approached Mr. Tillay, Mr. Tillay's friend, and Plaintiff Campusano to inquire about their method of entering the car. Plaintiff Campusano explained to defendant officers FITZGERALD, SIMPSON, or JANE and JOHN DOE # 1-8 she had locked her keys in the car and her boyfriend was helping her retrieve them. She offered to provide documentations to officers demonstrating her Uncle's proof of ownership. She was also in possession of a valid driver's license.
17. Once defendant officers FITZGERALD, SIMPSON, or JANE and JOHN DOE # 1-8 approached Plaintiff Campusano, she was not free to leave.
18. Plaintiff Campusano provided the defendant officers with the registration and title in her uncle's name. This paperwork provided objective evidence that the vehicle belonged to Miguel Vasquez, her uncle, and that she was an authorized driver of the vehicle. Upon information and belief, defendant officers were unsure whether any crime had been committed, and spent 45 minutes at the scene examining the car's license plates. Defendant officers FITZGERALD, SIMPSON, or JANE and JOHN DOE # 1-8 never attempted to contact Mr. Vasquez to provide information on the validity of the plates. Unsure of the validity of the plates, defendant officers Plaintiff Campusano she must accompany them to the precinct for "questioning". Defendant officers would not allow plaintiff to leave her handbag or other personal items with her boyfriend, although she wasn't placed in handcuffs or ostensibly under arrest at that time. Without plaintiff's consent or the requisite permission or authority, defendant officers searched Plaintiff Campusano's bag and claimed to have recovered crack cocaine from it. Plaintiff denies she was in actual or constructive possession of any drug. Defendant officers destroyed Plaintiff Campusano's bag and the contents inside of it.
19. Plaintiff was transported from the 40th Precinct to Bronx Central Booking. Based on the defendants' FITZGERALD, SIMPSON, or JANE and JOHN DOE # 1-8 false statements, the Bronx County District Attorney's office chose to prosecute Plaintiff under docket 2019BX030775.
20. During her confinement, Plaintiff Campusano was denied food or sanitary water to drink by defendants FITZGERALD, SIMPSON, or JANE and JOHN DOE # 1-8. She was pregnant during her time in incarceration, and was told the only water she would be permitted to drink was out of a dirty faucet standing next to a filthy toilet. Out of fear of sickening herself or her child, she suffered from significant thirst during her entire period of incarceration.

21. At arraignment, Plaintiff received an Adjournment in Contemplation of Dismissal.
22. Plaintiff had to pay \$290 to retrieve the vehicle from the towing company. Plaintiff was in custody for 22.5 hours.

FIRST CAUSE OF ACTION

FALSE ARREST AND FALSE IMPRISONMENT

23. Plaintiff repeats and alleges paragraphs 1 through 22 as if fully set forth herein.
24. The acts and conduct of the defendants FITZGERALD, SIMPSON, or JANE and JOHN DOE # 1-8 constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.
25. The individually named defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.
26. As a result of the foregoing, Plaintiff's liberties were restricted for an extended period of time, she was put in fear of her safety, and she was humiliated, searched, and subjected to handcuffing and other physical restraints, without probable cause.
27. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

SECOND CAUSE OF ACTION

NEGLIGENT HIRING, RETENTION, TRAINING AND SUPERVISION

28. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 27 with the same force and effect as if more fully set forth at length herein.
29. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise the individually named defendants, FITZGERALD, SIMPSON, or JANE and JOHN DOE # 1-8, individuals who were unfit for the performance of NYPD duties.
30. The aforementioned acts of negligent hire, retention, training, and supervision by the City of New York and the New York City Police Department include, but are not limited to failing to take reasonable control/and or discipline officers who lie, fabricate evidence, engage in illegal acts toward other police officers or civilians, and/or commit perjury to cover up police misconduct and/or inflate arrest statistics

THIRD CAUSE OF ACTION**FAILURE TO INTERVENE**

31. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 30 with the same force and effect as if more fully set forth at length herein.
32. Defendants had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other members of the NYPD.
33. Defendants FITZGERALD, SIMPSON, or JANE and JOHN DOE # 1-8 failed to intervene to prevent the unlawful conduct described herein despite having had a reasonable opportunity to do so, and full knowledge of the unlawful conduct.
34. As a result of the foregoing, plaintiff was subjected to an illegal search, false arrest, and significant and sustained thirst and hunger over the course of the false arrest.
35. Defendants were at all times agents, servants, and employees acting within the scope of his employment by the City of New York, the New York City Police Department, which are therefore responsible for their conduct.
36. The City, as the employer of defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

FOURTH CAUSE OF ACTION**NEGLIGENCE**

37. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 36 with the same force and effect as if more fully set forth at length herein.
38. Defendants owed a duty of care to plaintiff as she was in their custody and control.
39. Defendants breached that duty of care by subjecting her to an illegal search and refusing to provide clean drinking water or food during her time in custody.
40. As a direct and proximate cause of this unlawful conduct, plaintiff suffered significant thirst and hunger while pregnant.
41. All of the foregoing occurred without any fault by plaintiff.
42. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

FIFTH CAUSE OF ACTION

INTENTIONAL AND NEGLIGENT INFLICTION OF EMOTIONAL DISTRESS

43. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 40 with the same force and effect as if more fully set forth at length herein.
44. By the actions described herein, the individually named police officer defendants, FITZGERALD, SIMPSON, or JANE and JOHN DOE # 1-8, each acting individually and in concert with one another, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to plaintiff. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiff and violated plaintiff's statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.
45. As a result of the foregoing, plaintiff was deprived of liberty and sustained great emotional injuries, including significant and sustained thirst and hunger.
46. The City, as the employer of the defendants, is responsible for their wrongdoing under the doctrine of respondeat behavior.

SIXTH CAUSE OF ACTION

CRUEL AND UNUSUAL PUNISHMENT

47. The plaintiffs repeat, reiterate, and reallege each and every allegation contained in paragraphs marked 1 through 44 with the same force and effect as if more fully set forth at length herein.
48. By actions described herein, the individually named police officer defendants, FITZGERALD, SIMPSON, or JANE and JOHN DOE # 1-8, and correction officers, each acting individually and in concert with one another, intentionally disregarded plaintiff's dietary needs. Defendants refused to provide sanitary drinking water or food to Plaintiff, although she was pregnant at the time. This failure to provide adequate food and water inflicted unnecessary and wanton pain upon plaintiff. As a result, plaintiff suffered severe pain and prolonged physical harm.
49. As a result of the foregoing, plaintiff was subjected to cruel and unusual punishment.
50. The City, as the employer of the defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

FEDERAL CLAIMS**FIRST CLAIM FOR RELIEF****DEPRIVATION OF FEDERAL RIGHTS UNDER 42 U.S.C. § 1983**

51. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.
52. All of the aforementioned acts of defendants FITZGERLAND AND SIMPSON and/or POLICE OFFICERS JOHN and JANE DOE" #1-10, their agents, servants, and employees, were carried out under the color of state law.
53. All of the aforementioned acts deprived plaintiff of her rights, privileges, and immunities guaranteed to citizens of the United States by the Fourth and Fourteenth Amendments to the Constitution of the United States of America, and in violation of 42 U.S.C. § 1983.
54. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers with all the actual and/or apparent authority attendant thereto.
55. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers, pursuant to the customs, usages, practices, procedures, and the rules of the City of New York, the New York City Police Department, all under the supervision of ranking officers of said department.
56. Defendants, collectively and individually, while acting under color of state law, engaged in conduct which constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

SECOND CLAIM FOR RELIEF**FALSE ARREST UNDER 42 U.S.C. § 1983**

57. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.
58. As a result of the aforesaid conduct by defendants and/or POLICE OFFICERS "JOHN DOE" #1-10, plaintiff was subjected to an illegal, improper, and false arrest by the defendants FITZGERLAND AND SIMPSON and/or POLICE OFFICERS "JOHN DOE" #1-10, taken into custody and caused to be falsely imprisoned, detained, and confined, without any probable cause, privilege or consent.
59. As a result of the foregoing, plaintiff's liberties were restricted for an extended period of time, she was put in fear for her safety, and she was humiliated, searched, and subjected to handcuffing and other physical restraints, without probable cause.

THIRD CLAIM FOR RELIEF**DENIAL OF CONSTITUTIONAL RIGHT TO FAIR TRIAL UNDER 42 U.S.C. § 1983**

60. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.
61. Defendants FITZGERLAND AND SIMPSON and/or POLICE OFFICERS “JOHN DOE” #1-10 created false evidence against the plaintiff.
62. Defendants FITZGERLAND AND SIMPSON and/or POLICE OFFICERS “JOHN DOE” #1-10 forwarded false evidence and false information to prosecutors in the Queens County District Attorney’s Office – namely, the defendants falsely informed prosecutors *inter alia*, that the marijuana and heroin were found inside Plaintiff’s apartment.
63. Defendants FITZGERLAND AND SIMPSON and/or POLICE OFFICERS “JOHN DOE” #1-10 misled the prosecutors by creating false evidence against the plaintiff and thereafter providing the aforementioned false statements throughout the criminal proceedings.
64. In creating false evidence against the plaintiff, in forwarding false evidence and information to prosecutors, and in providing false and misleading sworn statements, defendants FITZGERLAND AND SIMPSON and/or POLICE OFFICERS “JOHN DOE” #1-10 violated plaintiff’s constitutional right to a fair trial under the Sixth Amendment and the Due Process Clause of the Fifth and Fourteenth Amendments of the United States Constitution.
65. As a result of the foregoing, plaintiff’s liberty was restricted for an extended period of time, he was put in fear for his safety, and he was humiliated and subjected to handcuffing and other physical restraints without probable cause.

FOURTH CLAIM FOR RELIEF**FAILURE TO INTERCEDE UNDER 42 U.S.C. § 1983**

66. Plaintiff repeats, reiterates, and realleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.
67. Defendants FITZGERLAND AND SIMPSON and/or POLICE OFFICERS “JOHN DOE” #1-10 had an affirmative duty to intercede when plaintiff’s constitutional rights were being violated in defendants’ presence by the misrepresentation and falsification of evidence regarding the circumstances surrounding plaintiff’s arrest throughout all phases of the criminal proceedings.
68. Defendants FITZGERLAND AND SIMPSON and/or POLICE OFFICERS “JOHN DOE” #1-10 further violated plaintiff’s constitutional rights when they failed to intercede and prevent the violation or further violation of plaintiff’s constitutional rights and the injuries or further injuries caused as a result of said failure.

69. As a result of the defendants' failure to intercede when plaintiff's constitutional rights were being violated in defendants' presence, plaintiff sustained, *inter alia*, emotional injuries, plaintiff's liberty was restricted for an extended period of time, he was put in fear for his safety, and he was humiliated and subjected to handcuffing and other physical restraints, without probable cause.

FIFTH and SIXTH CLAIM FOR RELIEF

CRUEL AND UNUSUAL PUNISHMENT AND NEGLIGENCE under 42 USC § 1983

42 U.S.C. § 1983 and 42 U.S.C. 1988

Violation of First, Fourth, Eighth and Fourteenth Amendments of US Constitution pursuant to Court's concurrent jurisdiction over Plaintiff's cruel and unusual punishment/unlawful-search claims (5th claim) and negligence (6th claim).

70. The plaintiffs repeat, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 75 with the same force and effect as if more fully set forth at length herein.
71. Defendants, while acting under color of state law, engaged in conduct that violated Plaintiff's federal constitutional rights as protected by 42 USC Section 1983.
72. New York State courts have concurrent jurisdiction to hear federal claims such as Plaintiff's Section 1983 ones here.
73. Plaintiff's federal constitutional claims—brought pursuant to 42 USC 1983 and 1988—allege the violation of her First, Fourth, Eighth and Fourteenth Amendment rights.
74. In particular, Plaintiffs allege that Defendants' retaliatory and harassing false arrest, use of cruel and unusual punishment, unlawful search, and fabrication of evidence violated her First, Fourth, and Fourteenth Amendment rights insofar as Defendants had no cause or legal privilege to submit Plaintiff to deprivation of her liberty, seizure and search of his person, and other constitutional injuries, yet they did so with malice and retaliatory intent.
75. Insofar as Plaintiffs' federal claims, brought pursuant to the court's concurrent jurisdiction over them, mirror state constitutional tort and tort elements, Plaintiffs repeat and reiterates the above allegations in support of the federal claims here.
76. In the event Plaintiff prevails at trial on one, some or all of their 42 USC Section 1983 claims pursuant to the court's concurrent jurisdiction, he also seeks reasonable fees and costs as prevailing party pursuant to 42 USC Section 1988.

SEVENTH CLAIM FOR RELIEF**MUNICIPAL LIABILITY UNDER 42 U.S.C. § 1983**

77. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.
78. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.
79. The aforementioned customs, policies, usages, practices, procedures, and rules of the City of New York and the New York City Police Department include, but are not limited to, the following unconstitutional practices:
 - A. arresting individuals regardless of probable cause in order to inflate the officer's arrest statistics; and,
 - B. arresting innocent persons notwithstanding the existence of credible evidence which exonerates the accused of any criminal wrongdoing; and,
 - C. fabricating evidence in connection with their arrest/prosecution in order to cover up police misconduct; and,
 - D. arresting individuals regardless of probable cause in order to deprive individuals of their right to freedom of speech under the First and Fourteenth Amendments and/or in retaliation for individuals exercising their First Amendment rights; and,
 - E. arresting innocent persons notwithstanding the existence of credible evidence which exonerates the accused of any criminal wrongdoing and regardless of probable cause, for the purpose of obtaining overtime compensation; and,
 - F. failing to take reasonable steps to control and/or discipline police officers who lie, fabricate evidence, and/or commit perjury in order to cover up police misconduct and/or inflate arrest statistics.
80. The foregoing customs, policies, usages, practices, procedures, and rules of the City of New York and the New York City Police Department constituted deliberate indifference to the safety, well-being and constitutional rights of the plaintiffs.

81. The foregoing customs, policies, usages, practices, procedures, and rules of the City of New York and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by the plaintiffs as alleged herein.
82. The foregoing customs, policies, usages, practices, procedures, and rules of the City of New York and the New York City Police Department were the moving force behind the constitutional violations suffered by the plaintiffs as alleged herein.
83. Defendants, collectively and individually, while acting under color of state law, were directly and actively involved in violating the plaintiffs' constitutional rights.
84. Defendants, collectively and individually, while acting under color of state law, acquiesced in a pattern of unconstitutional conduct by subordinate police officers, and were directly responsible for the violation of the plaintiffs' constitutional rights.
85. The acts complained of deprived the plaintiffs of their rights:
 - G. Not to be deprived of liberty without due process of law;
 - H. To be free from seizure and arrest not based upon probable cause;
 - I. Not to have summary punishment imposed upon them; and
 - J. To receive equal protection under the law.

WHEREFORE, GLADYS CAMPUSANO, plaintiff, demands a judgment against the defendants on each cause of action in amounts to be determined upon the trial of this actions which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorney's fees inclusive of costs and disbursements of this action, interest and such other relief as appropriate under the law.

Dated: New York, New York
April 12, 2021

Respectfully submitted:

By: *Sydney Ohagan*
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New York, New York 10005
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TO:

CITY OF NEW YORK: CORPORATION COUNSEL 100 Church Street, New York, NY 10007

NYPD OFFICER LAMIK FITZGERALD (SHIELD # 25117) and NYPD OFFICER ANDREW SIMPSON (SHIELD # 7218), 40th Precinct, Bronx, New York

ATTORNEY'S VERIFICATION

I, **SYDNEY O'Hagan**, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am attorney at the law firm of **SYDNEY O'HAGAN, ESQ.**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters wherein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff's is that Plaintiff is out of the county.

DATED: New York, New York
April 12, 2021



Sydney O'Hagan, Esq.